

"State vigilance set-up needs to be strengthened"

Chief Vigilance Commissioner Pratyush Sinha is a retired IAS officer of Bihar cadre 1969 batch. Principal Correspondent SHYAMLAL YADAV spoke to him at length. Exerpts:

Q. Why does departmental action against bureaucrats takes so much time?

A. We do not do our job with sensation. Complete investigation is needed before recommending any action.

Q. But there is a perception that no action takes place against them.

A. The vigilance set-up of state governments needs to be strengthened, because most of the departments dealing with public are under state governments. Often we have knowledge of so many things but we cannot give direction to the state governments. Our jurisdiction is limited to central officers.

Q. What should be done?

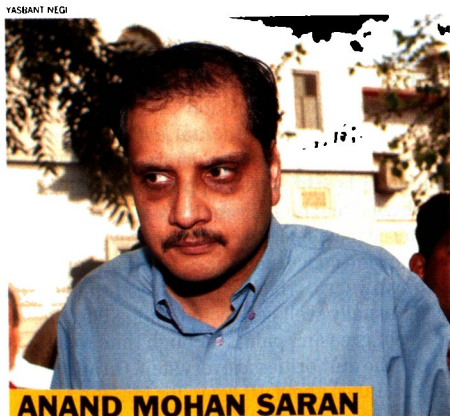
A. We must improve and strengthen the enforcement mechanism. State governments should have an autonomous body like CVC at the state level.

Q. But how should we reduce the investigation time?

A. We are trying to reduce it systematically. The accused also feel harassed in the present scenario.

Q. Are you satisfied with the functioning of the present system?

A. I can't say that I am satisfied, but a lot of progress has been made in this regard. Many departments are trying to use technologies and softwares to reduce the distance between the system and the people. But I will again say that the state governments have to do a lot.



ANAND MOHAN SARAN

IAS

Faces cases for amassing wealth disproportionate to his income. Rs 36 lakh worth of assets seized from his residence in March 2003.

Status: THE CASE IS UNDER TRIAL

number of IAS, IPS and IRS officers, who were facing trial, was 33, eight and 64, respectively, only 12 IAS officers, four IPS and 20 IRS officers were ever arrested. As for cases under investigation, none of the 16 IAS officers and seven IRS officers have been arrested so far while only four of the 34 IRS officers were arrested.

Even arrest does not ensure that an officer ceases to swindle the treasury. Anand Mohan Saran of Haryana cadre, who is the labour commissioner of Gurgaon, was arrested on March 28, 2003 after a raid on his house unearthed Rs 36 lakh worth of assets and property. His case is under trial but departmental action is yet to be taken against him. Among IRS officers, only Madan Lal, a 1980 batch officer of commissioner rank, was recently convicted and awarded a year's imprisonment. The state of slow judicial process and of the tawdry CBI investigation can be gauged from the case of dismissed IAS officer S.S. Ahluwalia, the former chief secretary of Nagaland. CBI had registered a case against him on March 24, 1982, but it took the agency another 23 years to file a chargesheet. And the court framed the charges against him only last month.

While the legal battle against these officers is in various stages in different courts,

Roll of DISHONOUR

K. NAGRAJ

IPS

FIR: February 9, 2005

Then: DIG, CRPF, Hyderabad

Now: IG, Tripura

Date of Chargesheet:

March 29, 2007

Status: Under trial

BRIJINDER RAI

IPS

FIR: November 1, 2000

Then: SP, Gurgaon

Now: ADGP (Litigations), Haryana

Date of Chargesheet:

March 26, 2003

Status: Under trial

RAKESH MITTAL

IPS

FIR: 2003

Then: ADGP, Uttarakhand

Now: ADGP, Uttarakhand

Date of Chargesheet:

September 11, 2006

Status: Under trial

V.K. PURI

C&CES

FIR: February 20, 2002

Then: Commissioner,

Customs, Lucknow

Now: Commissioner, Central

Excise, Raipur

Date of Chargesheet:

January 30, 2004

Status: Under trial. Departmental action recommended.

R.S. MEENA

C&CES

FIR: October 25, 1999

Then: Assistant

Commissioner, Inland

Container Depot, Jaipur

Now: Posted in Delhi

Date of Chargesheet: NA

Status: Departmental action recommended